

SECTION D – SOLICITATION PROVISIONS

D.1 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS — COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ITEMS (MARCH 2023)

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

In addition to information provided by FAR Clause 52.212-1 Instructions to Offerors – Commercial Items, the following instructions to offerors apply:

- (a) This solicitation is Full and Open Competition/Unrestricted.
- (b) The offer shall be submitted in accordance with the following instructions, which establish the acceptable minimum requirements for the format and content of the offer. The offerors shall provide sufficient technical documentation to allow for thorough evaluation of the offeror's ability to provide the requirements outline this solicitation.
- (c) Intentions to submit a proposal shall be submitted via email to Contract Specialist (CS), *Alanna Wilson* at Alanna.Wilson@va.gov and Contracting Officer (CO) *Sara Vickroy*, Sara.Vickroy@va.gov on or before close of business on the date specified on the SF1449, Block 20.
- (d) All questions from contractors regarding this solicitation shall be submitted via email to CS, *Alanna Wilson* at Alanna.Wilson@va.gov and CO, *Sara Vickroy* at Sara.Vickroy@va.gov on or before close of business on the date specified on the SF1449, Block 20. It is requested that all questions be combined into one Microsoft Word document per contractor.
- (e) If you choose to submit a proposal, it shall be submitted via email to CS, *Alanna Wilson* at Alanna.Wilson@va.gov and CO, *Sara Vickroy* at Sara.Vickroy@va.gov on or before date/time specified on the SF1449, Block 8.
- (f) In accordance with FAR 52.212-1(f), contractors are responsible for submitting offers to reach the Government office designated in the solicitation by the time specified in the solicitation. These e-mail inboxes are the Government office designated in the solicitation as defined in FAR 52.212-1(f)(1) for timely Receipt of Proposals. The offeror assumes full responsibility for ensuring that the submission is received at the e-mail addresses stated above by the closing date and time identified in the solicitation. This does not include the initial point of entry to the Government infrastructure. Exceptions for late receipt of electronic submissions are specifically outlined in FAR 52.212-1(f)(2). Offerors are encouraged to familiarize themselves with this section and submit offers no later than **5:00pm** one working day prior to the date specified for receipt due to the anticipated number of submissions that

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will enter the Government infrastructure at this time. The CO and CS cannot guarantee a confirmation of receipt. Offers received after the closing date and time may not be accepted.

- (g) The offer must stipulate that it is predicated upon the terms and conditions of this RFP and signed by an official authorized to bind the offeror. In addition, it must contain a statement to the effect that the offer is firm for a period of at least 90 days from the date of receipt thereof by the Government.
- (h) This RFP does not commit the Government to pay any of the costs associated with the preparation and submission of any offer received in responses to this solicitation. In addition, the CO is the only individual authorized to legally commit the Government to the expenditure of public funds in connection with this requirement.
- (i) Offerors are encouraged to offer their best rates in their initial quotation as the Government reserves the right to award with or without communications based upon the initial evaluation of offers.
- (j) Format

The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date, and solicitation number in the header and/or footer.

Proposal page limitations are applicable to this procurement. The table below indicates the maximum page count (when applicable) for each volume of the offeror's offer. All files will be submitted as a Microsoft Excel (.xls/.xlsx), Microsoft Word (.doc/.docx), or Acrobat (.pdf) file or compatible as indicated in the table. Page size shall be no greater than 8 1/2" x 11". The top, bottom, left and right margins shall be a minimum of one inch each. Font size shall be no smaller than 12-point. Times New Roman fonts are required. Characters shall be set at no less than normal spacing and 100% scale. Tables and illustrations may use a reduced font size not less than 8-point and may be landscape. Line spacing shall be set at no less than single space. Each paragraph shall be separated by at least one blank line. Page numbers, company logos, and headers and footers are not bound by the 12-point font requirement. Footnotes to text shall not be used. **The use of hyperlinks and embedded links in offers is prohibited. Proposals will be evaluated solely on the information contained in proposals without reference to extraneous information.**

If the offeror submits annexes, documentation, attachments or the like, not specifically required by this solicitation, such will count against the offeror's page limitations unless otherwise indicated in the specific Volume instructions below. Pages in violation of these instructions, either by exceeding the margin, font, or spacing restrictions, or by exceeding the total page limit for a particular volume, will not be evaluated. Pages not evaluated due to violation of the margin, font, or spacing restrictions will not count against the page limitations. The page count will be determined by counting the pages in the order they appear in the print layout view.

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(k) File Packaging:

Do not compress (zip) proposal files. VA Network Security Operations Center (NSOC) has temporarily blocked email attachments with the “.zip” extension as a mitigation measure against the ongoing world-wide ransomware event impacting many organizations. **During this time, .zip file extensions will be permanently stripped from email traffic and will not be recoverable.** Due to VA email file size restrictions, vendors are encouraged to logically separate their offer into separate emails. If this is necessary, offerors should attempt to contain complete volume within single email transmissions (and not split volumes). Vendors are encouraged to review and ensure that sufficient bandwidth is available on their end of the transmission.

(l) Content Requirements:

All information shall be confined to the appropriate file. The Vendor shall confine submissions to essential matters, sufficient to define the offer and provide an adequate basis for evaluation. Vendors are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each offer. The title requirements for each file are shown in the Table below.

(m) Proposals submitted in response to this solicitation shall contain the following in separate volumes:

VOLUME NUMBER	FACTOR	FILE NAME
Volume I	Technical	Your Company Name - Tech.pdf
Volume II	Past Performance	Your Company Name - PastPerformance.pdf
Volume III	Veterans Preference	Your Company Name – VetPreference.pdf
Volume IV	Price	Your Company Name - Price.xls
Volume V	Offer, Amendments, and Certifications & Representations	Your Company Name - OfrRep.pdf

VOLUME I – TECHNICAL FACTOR:

Offerors shall provide descriptive literature which will be used to thoroughly evaluate each proposal to determine the extent to which it meets the salient characteristics listed

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in Attachment B – Product Description. All the minimum salient characteristics listed in the solicitation must be met to be considered eligible for award.

Offerors are required to list on the Salient Characteristics Table located in Attachment B the location in Offeror's proposal where compliance to the salient characteristics can be found. The table must be completed and included with the Offeror's proposal. Proposals that do not include the completed table will be excluded from consideration for award.

Offerors may propose any product solution or configuration so long as the solution proposed meets the salient characteristics. Equivalent products being proposed in the Technical Volume must also be clearly identified in the Pricing Volume. Products proposed in the Technical Volume must be captured on – appear and correspond with -- the Offeror's Pricing Volume (Attachment A - Price Cost Schedule of the solicitation).

Only new original equipment manufacturer (OEM) parts are acceptable; no remanufactured or "gray market" items. No product in development shall be considered. All items must be covered by the manufacturer's warranty.

Distributors must be authorized distributors/resellers as certified by the OEM and certified to perform maintenance, installation, and training. OEM letter must be submitted with proposal. Any proposal received without an OEM letter meeting the requirements will be ineligible for award. The OEM letter must be valid for the life of the contract. Those proposals which fail to meet all of the salient characteristics will be rated "Unacceptable" and will be ineligible for award.

No pricing should be included in Volume I.

VOLUME II – PAST PERFORMANCE:

The Offeror shall complete **Attachment G: Past Performance Reference** in its entirety, listing a total of three contracts/orders for relevant work performed in the past three years or currently being performed. We will evaluate relevant past performance (not just past performance for delivery of this product.) The Government will make the determination of relevance (based on size, scope, and complexity of requirement.

Contracts/orders listed may include those entered with the Federal Government, agencies of state and local governments and commercial concerns. Offerors may also submit past performance information regarding predecessor companies, key personnel who have relevant experience or subcontractors that will perform major or critical aspects of the requirement when such information is relevant to the acquisition. For the purposes of this solicitation, a major subcontract is defined as 20% of the total contract effort. Data concerning the prime contractor shall be provided first, followed by each proposed major subcontractor, in alphabetical order.

Offerors shall indicate on Attachment G if there are Contractor Performance Assessment Reporting System (CPARS) report(s) available for each reference. In the

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event an assessment was not completed in CPARS for the contract/order, Offerors may request the reference point of contact (POC) to complete and submit a Past Performance Questionnaire (PPQ) (See Attachment F of this solicitation). The Offeror shall instruct the POC at the referenced entity to return a copy of the completed PPQ directly to the Contracting Officer and the Contract Specialist at Sara.Vickroy@va.gov and Alanna.Wilson@va.gov NO LATER THAN THE CLOSING DATE OF THE SOLICITATION (inclusive of any closing date extensions granted via amendment). PPQs will only be evaluated for those contracts/orders that do not have a CPARS report available.

The Government is not required to contact references provided by the Offeror. Also, references other than those identified by the Offeror may be contacted by the Government to obtain additional information that will be used in the evaluation of the Offeror's past performance. The Government may consider past performance information obtained through other sources which is reasonably available and determined to be relevant. Past performance information obtained will be used for both the responsibility determination and best value decision.

Offerors shall indicate on **Attachment G** if they have no record of relevant or recent past performance.

VOLUME III – VETERANS PREFERENCE

Offerors shall submit a Veterans Preference volume addressing SDVOSB, VOSB, and Non-Veteran Own Contractor participation. The order of preference for Veterans Preference shall be:

- i. Service-Disable Veteran-Owned Small Business (SDVOSB); followed by
- ii. Veteran-Owned Small Business (VOSB); followed by
- iii. Non-Veteran Owned offerors who propose to team, subcontract, or the like with SDVOSBs and VOSBs.

Offerors shall submit substantiating documents such as teaming agreements, mentor protégé agreements, and the like.

For SDVOSB/VOSB concerns: To receive credit as an SDVOSB or VOSB under this Factor, an offeror shall submit a statement of compliance that it qualifies as an SDVOSB or VOSB in accordance with VAAR 852.215-70, Service-Disabled Veteran-Owned and Veteran-Owned Small Business Evaluation Factors. SDVOSB and VOSB offerors are cautioned that they must be certified by the Small Business Search (SBA) database (<https://search.certifications.sba.gov>) and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and time of award.

For Non-SDVOSBs/VOSBs: To receive some consideration under this Factor, a prime contractor must state in this volume the name(s) of SDVOSB(s) and/or VOSB(s) with whom it intends to subcontract. The offeror shall provide a brief description and the approximate dollar values of the proposed subcontracts. Additionally, proposed SDVOSB/VOSB subcontractors must be certified by the Small Business Search (SBA)

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database (<https://search.certifications.sba.gov>) and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and time of award in order to receive some consideration under this Factor.

Note that the Government requires the offeror to honor the evaluation factor commitment to the SDVOSB/VOSB concern throughout the life of the contract. The offeror shall agree, if awarded a contract, to use the SDVOSB or VOSBs proposed as subcontractors or to substitute one (1) or more SDVOSBs or VOSBs for subcontract work of the same or similar value.

With regard to the requirement for registration and verification in the VetCert database, reference VAAR 852.215-70.

To the maximum extent feasible, the offeror and any subcontractors shall comply with VA's VOSB, SDVOSB, socioeconomic, and other small business goals, including, but not limited to, 38 U.S.C. § 8127.

The VA will assign evaluation credit for a contractor (prime contractor) that is a SDVOSB or VOSB. Non-Veteran owned firms that subcontract 7% or more of the contract value to a SDVOSB or 10% or more of the contract value to VOSB will also receive evaluation credit.

VOLUME IV – PRICE FACTOR:

The Vendor shall complete **Attachment A - Price Cost Schedule** for the base year and all option years and submit it in Volume III of their proposal.

In order to maximize the VA's buying power and leverage the best value for the taxpayer, the VA is seeking volume discounts. It is expected that as the output and scale of an operation increases, that the unit cost per item should decrease as fixed costs are spread over more units of output. The VA expects that a portion of these reduced costs be will passed-on and reflected in lower unit pricing.

Price Rounding Issue - The Government requires Vendors to propose unit prices and total prices that are two (2) decimal places and requires the unit prices and total prices to be displayed as two (2) decimal places. Ensure that the two (2) digit unit price multiplied by the item quantity equals the two (2) digit total item price (there should be no rounding).

If an Excel spreadsheet is submitted by the Vendor, the Vendor shall ensure that the actual values in the spreadsheet cells are no more than two (2) decimal places even if values in the spreadsheet cells are formatted to display two (2) decimal places.

The Government requests the Vendor provide prices, warranties, conditions, benefits, and terms that are at least equal to or more favorable than the prices, warranties, conditions, benefits, and terms offered by the Vendor to any customers for the same or a substantially similar quantity and type of service.

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The current SLA which applies to this contract action is 3.0%. This SLA Fee shall be imbedded in the awarded contract/agreement price(s) and offers submitted in response to this solicitation shall include this SLA Fee in the price of every line item offered.

VOLUME V – OFFER, AMENDMENTS, & CERTIFICATIONS/REPRESENTATIONS

Certifications and Representations - An authorized official of the firm shall sign the offer sheet and all certifications requiring original signature. The offer sheet should be dated and submitted on letterhead stationery. An Acrobat PDF file shall be created to capture the signatures for submission.

At a minimum the offer sheet shall contain the following:

- a. Solicitation Number;
- b. Acknowledgement of Amendments, if any;
- c. The name, address, and telephone number of the Offeror
- d. Tax Identification Number (TIN)
- e. Unique Entity Identity (UEI) Number / DUNS Number / Cage Code
- f. Point of Contact for submission of orders if awarded contract.
- g. Authorized Distributor Letter certified by OEM with **current date**.
- h. Offeror shall submit representations and certifications IAW FAR 52.212-1, if not completed in SAM.
- i. Complete provisions at FAR 52.209-2, FAR 52.209-5, FAR 52.209-7, FAR 52.209-11, and FAR 52.225-6.
- j. Complete FAR clause 52.219-28.
- k. Period for acceptance of offers. The Offeror agrees to hold the prices in its proposal firm for 90 calendar days from the date specified for receipt of proposals unless another time period is specified in an addendum to the solicitation.
- l. **A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offerors that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.**

Offerors are hereby advised that any Offeror-imposed terms and conditions and/or assumptions which deviate from the Government's material terms and conditions established by the Solicitation, may render the Offeror's proposal Unacceptable, and thus ineligible for award.

Any questions regarding this Request for Proposal (RFP) shall be addressed in writing to Contract Specialist at Alanna.Wilson@va.gov and Contracting Officer Sara.Vickroy@va.gov no later than the question due date found in block 20. No calls will be accepted.

(End of Addendum to 52.212-1)

D.2 52.212-2 EVALUATION—COMMERCIAL ITEMS (NOV 2021)

The following provisions are incorporated into 52.212-2 as an addendum to this solicitation:

A. BASIS FOR AWARD

This acquisition is Unrestricted and is being conducted in accordance with FAR Part 12 and FAR Part 15. The Government will award a contract resulting from this solicitation to the responsible Offeror whose proposal conforms to the solicitation, and which represents the best value to the Government, with consideration given to the following evaluation Factors which are listed in descending order of importance: Technical, Past Performance, Veterans Preference and Price.

The Technical Factor is significantly more important than Past Performance. The Past Performance Factor is slightly more important than the Veterans Preference Factor. The Veterans Preference Factor is slightly more important than Price. When combined, the non-price factors are significantly more important than price.

To receive consideration for award all the salient characteristics listed in Attachment B – Product Description must be met. Products failing to meet the salient characteristics, and all the terms and conditions of the solicitation will be eliminated and receive no further consideration. Offerors are cautioned that the award may not necessarily be made to the Offeror proposing the lowest price, or to the Offeror with the most highly rated technical proposal. Award may be made to other than the lowest priced proposal, if the Government determines that a price premium is warranted due to the merits of one or more of the non-price factors.

The Government intends to award one contract.

B. FACTORS TO BE EVALUATED

1. Technical
2. Past Performance
3. Veterans Preference
4. Price

C. EVALUATION APPROACH

All proposals shall be subject to evaluation by a team of Government personnel. Contents of the written proposals will be evaluated to determine the degree and extent to which the proposals meet the requirements identified in the Solicitation. The written content of proposals will be evaluated in accordance with the evaluation approach defined in the solicitation. Proposals which merely restate the requirement or state that the requirement will be met, without providing supporting rationale, will not be sufficient. Offerors who fail to meet the salient characteristics of the solicitation or fail to complete and return the completed Salient Characteristic Table will be rated Unacceptable and thus, ineligible for award. The Government reserves the right to award without discussions based upon the initial evaluation of proposals. The scope of this procurement includes being able to provide the products to all VHA facilities located in the Continental United States (CONUS) or Outside of the Continental United states (OCONUS).

1. Technical Evaluation

Descriptive literature will be used to thoroughly evaluate each proposal to determine the extent to which it meets the salient characteristics. The proposal must demonstrate the Offeror's ability to meet or exceed all the salient characteristics listed in Attachment B – Product Description.

Offerors may propose any product solution or configuration so long as they meet the salient characteristics. Products proposed in the technical volume must be captured on the Offeror's pricing volume (Attachment A, Price Schedule) of the solicitation.

Offerors may propose any additional ancillary products which they deem to be essential to the functionality of the proposed solution; these items must be captured in the Offeror's pricing volume with a quantity of zero. Those proposals which fail to meet the requirements of the solicitation, and all the salient characteristics will be rated **"Unacceptable"** and will be ineligible for award.

In addition to meeting or exceeding the salient characteristics listed in Attachment B, the evaluation process will consider the following technical subfactors and assign an overall adjectival rating:

Evaluation Sub-factors

- **Safety**

Areas include but are not limited to the following:

- System security features
- Maintenance reminders
- Emergency alarms

- **Design**

Areas include but are not limited to the following:

- Touchscreen features and ease of use
- Image display, quality and resolution
- Data storage and RAM memory
- Patient data management
- External device and instrument compatibility
- System footprint and weight
- Power and environmental requirements for use

- **Diagnostic Tools and Imaging Techniques**

Areas include but are not limited to:

- Patient registration
- Surgical navigation
- Tool tracking
- Image merging capabilities
- Types of procedure specific software applications
- Pre and intraoperative planning capabilities

- **Quality/Construction**

Areas include but are not limited to:

- Life span/warranty
- Preventive maintenance requirements
- Terms and conditions service plan
- Terms and conditions training plan (on-site and off-site)

Products proposed in the technical volume must be captured in the vendor's pricing volume. Offers that merely restate the requirement or state that the requirement shall be met, without providing supporting rationale, will not be sufficient. To be considered for award products need to meet the SCs and also complete and return the Salient Characteristic Table demonstrating where in the literature compliance is met. Those meeting the SCs will be further evaluated using the technical subfactors and given an adjectival rating. Distributors must be authorized distributors as certified by the OEM. Only new equipment is acceptable; no remanufactured, used/refurbished or "gray market" items. No product in development shall be considered. All items must be covered by the manufacturer's warranty.

2. Past Performance Evaluation

The Government will conduct a performance risk assessment based on the quality of Offeror's past performance references. Past Performance will be evaluated to determine the extent to which the Offeror's performance demonstrates the likelihood of successful performance in meeting the needs outlined in this solicitation.

The evaluation will only consider references which are recent (defined as Contracts/BPAs/Orders performed within the last three years) and relevant (defined as, when considered meet much of the size, scope and/or complexity compared to the product description of this requirement).

Past Performance will be evaluated and given an adjectival rating based on the Past Performance Questionnaires (PPQs) received, the information provided by the Offerors, and other Government sources which may include Contractor Performance Assessment Reporting System (CPARS), the Contracting Officer's knowledge of and previous experience with the supply, or any other reasonable basis. The Government may use present and/or past performance data obtained from a variety of sources, not just those contracts identified by the contractor.

The Government may consider past performance information obtained through other sources which is reasonably available and determined to be relevant. Past performance information obtained will be used for both the responsibility determination and best value decision.

In the event that no relevant and recent Past Performance is identified for an offeror

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the Government will rate the offeror as neutral and the Offeror may not be evaluated favorably or unfavorably.

No relevant or recent past performance, as indicated on **Attachment G** or based on the determination of relevance by the Government, will be considered neutral.

3. Veterans Preference

In accordance with Veterans Affairs Acquisition Regulation (VAAR) 852.215-70 SDVOSB and VOSB Evaluation Factors, the Government will assign evaluation credit for an Offeror (prime contractor) which is a SDVOSB or a VOSB. To receive credit, an offeror must be registered and verified by the SBA database (<https://veterans.certify.sba.gov/>) and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and at time of award.

The following rating definitions will be utilized in the evaluation of the Veterans Involvement Factor:

- a. Full Credit — The Offeror is properly registered and certified by the SBA database (<https://veterans.certify.sba.gov/>) as a SDVOSB and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and time of award.
- b. Partial Credit — The Offeror is properly registered and certified by the SBA database (<https://veterans.certify.sba.gov/>) as a VOSB and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and time of award.
- c. Some Consideration — The non-SDVOSB/VOSB Offeror is proposing to subcontract a minimum of 7% of the total contract value proposed with SDVOSB(s) and/or a minimum of 10% of the total contract value proposed with VOSB(s), has provided a name of the SDVOSB(s) and/or VOSB(s), a brief description of the work they are to perform and the approximate dollar values of the proposed subcontracts. Proposed SDVOSB/VOSB subcontractors are registered and certified by the SBA database (<https://veterans.certify.sba.gov/>) and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both proposal submission and time of award.
- d. No Credit — The Offeror does not qualify for any credit as described above.

Also note that the Government requires the offeror to honor the evaluation factor commitment to the SDVOSB/VOSB concern throughout the life of the contract or to substitute one or more SDVOSB/VOSB businesses for subcontract work of the same or similar value (percentage).

4. Price Evaluation

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Total price will be evaluated IAW FAR 15.404-1. The Government will evaluate price to determine whether or not it is considered fair and reasonable. Attachment A, Price Cost Schedule will be reviewed and all total proposed unit prices for each CLIN (inclusive of option periods) will be added for a total cost for evaluation purposes. Each CLIN will be evaluated using the estimated quantities provided for in Attachment A Price Cost Schedule. The Total Proposed Cost will be the aggregate sum of all CLINs for the entire period of performance. The SLA fee of 3% shall be included in the total proposed unit price.

Example:

CLIN 0001

UOM = EA

Proposed Unit Price = \$60.00

SLA Fee 3% = \$1.80

Total Proposed Unit Price = \$61.80

Estimated Qty = 2

CLIN 0002

UOM = EA

Proposed Unit Price = \$45.00

SLA Fee 3% = \$1.35

Total Proposed Unit Price = \$46.35

Estimated Qty = 4

CLIN 0001: $\$61.80 \times 2 = \123.60

CLIN 0002: $\$46.25 \times 4 = \185.00

Total Evaluated Cost = \$308.60

The proposed firm fixed unit prices will be binding and incorporated in the resultant contract and utilized for all future orders placed during the term of the contract. The estimated quantities listed in Attachment A, Price Cost Schedule are listed for informational and evaluation purposes only and do not obligate the Government to purchase such quantity nor does the Government guarantee any volume of purchases through this contract. Vendors are encouraged to offer discounts.

Unbalanced Pricing: The Government may evaluate whether the offeror has submitted unbalanced pricing. An unbalanced price is one where the price of one or more contract line items is significantly overstated or understated and which will result in the Government paying an unreasonably high price for contract performance or otherwise present an unacceptable level of risk to the Government. If the Contracting Officer determines that the risk is unacceptable, then the proposal may be rejected.

In addition, if an offer is received from a Small Business Administration (SBA) certified HUBZone small business concern, offers/offers will be evaluated IAW FAR 52.219-4 by adding a factor of 10 percent to the price of all offers/offers, except—

(i) Offers/offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise, successful offers/offers from small business concerns.

(End of Addendum to 52.212-2)

D.3 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS—REPRESENTATION (Deviation OCT 2025)

(a) *Definitions.* *Inverted domestic corporation* and *subsidiary* have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) *Representation.* The Offeror represents that—

(1) It [] is, [] is not an inverted domestic corporation; and

(2) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(End-of-Provision)

D.4 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (OCT 2025)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

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Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default. (End of Provision)

D.5 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS
(Deviation OCT 2025)

(a) *Definitions.* As used in this provision—

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“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with the performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of provision)

**D.6 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING
DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY
FEDERAL LAW (FEB 2016)**

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that–

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

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(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of Provision)

D.7 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price Requirements contract resulting from this solicitation.

(End of Provision)

D.8 52.225-6 TRADE AGREEMENTS CERTIFICATE (FEB 2021)

(a) The offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(b) The offeror shall list as other end products those supplies that are not U.S.-made or designated country end products.

Other End Products

Line item No.	Country of origin

[List as necessary]

(c) The Government will evaluate offers in accordance with the policies and procedures of Part 25 of the Federal Acquisition Regulation. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for those products are insufficient to fulfill the requirements of this solicitation.

(End of Provision)

D.9 52.233-2 SERVICE OF PROTEST (OCT 2025)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them. (b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

**D.10 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/index.html>
<http://www.va.gov/oal/library/vaar/>

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION	JAN 2017
52.204-5	WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS)	OCT 2014
52.204-7	SYSTEM FOR AWARD MANAGEMENT-REGISTRATION (DEVIATION)	OCT 2025
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL ITEMS	SEP 2023
52.217-5	EVALUATION OF OPTIONS (DEVIATION)	OCT 2025
52.225-18	PLACE OF MANUFACTURE	AUG 2018
52.240-90	SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION)	AUG 2025

<u>VAAR Number</u>	<u>Title</u>	<u>Date</u>
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	SEP 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	SEP 2018

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852.273-70	LATE OFFERS	NOV 2021
852.273-74	AWARD WITHOUT EXCHANGES	NOV 2021

(End of Provision)